ONE WAY
PLUMBING, LLC

127 10th STREET SOUTH, STE. 200
KIRKLAND, WASHINGTON 98033
ONEWAWP895BU
(425) 968-8314

**Invoice Number: 036672**
Purchase Order: APPLICATION #8
Sales Rep.: ROUGH IN
Invoice Date: 12/18/15
Due Date: 01/10/16
Page Number: 1 of 1

Customer: 2024MG

Merrill Gardens at Ballard, LLC
111 N. Post, Suite 200
Spokane, WA 99201

Location:

Merrill Gardens at Ballard
5601 24th Ave NW
Seattle, WA 98107

| Quantity | Unit | Description / Part Number | Unit Price | Tx | Price Extension |
|---|---|---|---|---|---|
| 1.00 | | L-2, RI | 69,360.0000 | T | 69,360.00 |
| 1.00 | | P1, L1, L2, L3-Water Mains | 58,400.0000 | T | 58,400.00 |
| 1.00 | | P1, Stock Boiler Room | 50,000.0000 | T | 50,000.00 |
| 1.00 | | P1, Install Boiler Room | 11,800.0000 | T | 11,800.00 |
| 1.00 | | Boiler Venting | 700.0000 | T | 700.00 |
| 1.00 | | Gas Piping | 10,320.0000 | T | 10,320.00 |
| 1.00 | | L-2, RI | 14,180.0000 | T | 14,180.00 |
| 1.00 | | L-5, Set Stalls | 6,500.0000 | T | 6,500.00 |
| 1.00 | | L-6, Set Stalls | 6,500.0000 | T | 6,500.00 |
| 1.00 | | L-7, Set Stalls | 3,900.0000 | T | 3,900.00 |

| | |
|---|---|
| Sub Total | 231,660.00 |
| Sales Tax | 22,239.36 |
| **Invoice Net** | **253,899.36** |
| Less retainage | 11,583.00 |
| Due this Invoice | 242,316.36 |

**TERMS:** PAYABLE IN FULL 10th. OF MONTH FOLLOWING DATE OF PURCHASE. A FINANCE CHARGE OF 1.5% PER MONTH (ANNUAL PERCENTAGE RATE - 18%) WILL BE CHARGED ON UNPAID BALANCE.

# WAIVERS AND RELEASES ON PROGRESS PAYMENTS

**Project:** **5601 24th Avenue NW, Seattle, WA 98107**
**Owner*:** **Merrill Gardens at Ballard, LLC, 111 N. Post, Suite 200, Spokane, WA 99201**
**mail original back toOwner*

## CONDITIONAL RELEASE

Undersigned has performed work or supplied material to the project described above ("Project"). On receipt by the undersigned of a check payable to ONE WAY PLUMBING, LLC and when the check has been paid by the bank on which it is drawn, or wired funds which have been deposited into ONE WAY PLUMBING, LLC bank account in the amount of $ 242,316.36, this document becomes effective and is for the benefit of and may be relied upon by the owner of the Project, any lenders and the surety on any labor or material bond. Undersigned hereby waives, releases any mechanic's lien, any state or federal statutory bond right, any private bond right, any claim for payment and any rights under any similar ordinance, rule or statue related to claim or payment rights for persons in the undersigned's position that the undersigned has on the Project stated above to the following extent.

Undersigned warrants that he has fully paid or has made satisfactory arrangements to pay all obligations through 12-31-2015 owed by undersigned to subcontractors, materialmen and suppliers that pertain in any way to the Project.

This release covers a progress payment for all labor (including payroll taxes, expenses and benefits), services, equipment, or materials furnished to the Project's jobsite or to Owner. This release does not cover any retention, pending modifications and changes or items furnished after that date. Before any recipient of this document relies on it, said party should verify evidence of payment to the undersigned.

Undersigned makes this affidavit with the intention and understanding that the owner and its lender will rely on it when calculating, approving or making payments to undersigned. Undersigned acknowledges that it will be liable to the Owner or its lender for any losses that either of them suffers as a direct or indirect result of such reliance.

Company Name: ONE WAY PLUMBING, LLC

By: [signature]

member
Title *(must be owner or corp. officer)*

## UNCONDITIONAL RELEASE

Undersigned has performed work or supplied material to the project described above ("Project"). Undersigned has been paid $ 1,063,583.26 to date and the check(s) have been endorsed and have been paid by the bank(s) upon which it is drawn or the wired funds used to pay undersigned have been receipted.

This document is effective and is for the benefit of and may be relied upon by the Owner of the Project, any lenders and the surety on any labor or material bond. Undersigned hereby waives, releases any mechanic's lien, any state or federal statutory bond right, any private bond right, any claim for payment and any rights under any similar ordinance, rule or statue related to claim or payment rights for persons in the undersigned's position that the undersigned has on the Project stated above to the following extent.

Undersigned warrants that he has been fully paid and has made satisfactory arrangements to pay all obligations through 10-31-2015 owed by undersigned to subcontractors, materialmen and suppliers that pertain in any way to the Project.

This release covers progress payments for all labor (including payroll taxes, expenses and benefits), services, equipment, or materials furnished to the Project's jobsite or the Owner. This release does not cover any retention, pending modifications and changes or items furnished after that date.

Undersigned makes this affidavit with the intention and understanding that the Owner and its lender will rely on it when calculating approving or making payments to undersigned. Undersigned acknowledges that it will be liable to Owner or its lender for any losses that either of them suffers as a direct or indirect result of such reliance.

Company Name: ONE WAY PLUMBING, LLC

By: [signature]

member.
Title *(must be owner or corp. officer)*

State of Washington
County of Snohomish

Subscribed and sworn before me on this 18th day of December 2015.
Notary Public Melanie L Clifford
My Commission expires October 20, 2017

MELANIE L CLIFFORD
MY APPOINTMENT EXPIRES
NOTARY
PUBLIC
OCTOBER 20, 2017
STATE OF WASHINGTON

Place seal here

# Merrill Gardens at Ballard, LLC

111 North Post Street Suite 200
Spokane, WA 99201
509-455-5477
509-838-0933 Fax



**Contractor: One Way Plumbing, LLC** **Job#:5601 24th Ave. Seattle, WA 98107** Billing Date: 12-18-15
**Contact Name/Phone/Email:** **Mike Donelson** **425-968-8314 ext. 115** **miked@owpllc.net**
**Brett Mortimore** **425-968-8314 ext. 127** **brett@owpllc.net**

| **Supplier(s):** | email | Customer or Account number | Contract amount | Amount Paid to Date | Amount Due |
|---|---|---|---|---|---|
| Rosen Supply<br>253-627-3611 | ginny@rosenplumbing.com | 2704-0010 | N/A | $77,906.13 | $2,114.02 |
| Contact name: Ginny Roush | | | | | |
| Quality Concrete<br>425-355-5510 | mhaug@qcpnet.com<br>accounting@qcpnet.com | One Way Plumbing, LLC | N/A | $6985.00 | $0.00 |
| Contact name: Mike Haug | | | | | |
| Keller Supply<br>(800) 285-3302 | nbograng@kellersupply.com | 198139 | N/A | $1,372.40 | $11,294.21 |
| Contact name: Nicole Bograng | | | | | |
| Ferguson<br>206-933-3838 | krystal.daugherty@ferguson.com | 202746 | N/A | $9,809.23 | $1,299.25 |
| Contact name: Krystal Daugherty | | | | | |
| Mechanical Sales<br>206-330-2228 | cbrown@mechanicalsales.com | OWP LLC | N/A | $11,575.00 | $24,840.00 |
| Contact name: Christy Brown | | | | | |
| **Lower Tier Subcontractor:** | | | | | |
| None at this time | N/A | N/A | | $ | $ |
| Contact name: | | | | | |

**Signature of Officer:** _____
**Name of Officer (printed):** **Brett Mortimore**
**Title and phone number:** **Member 206-310-3749**

OFFICE USE ONLY

PM _____
DATE _____

| | A | B | C | D | E | F | G | H | I | J | K | L | M | N | O | P | Q | R | S | T | U | V | W | X | Y |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 1 | | PAY APPLICATION #7 | | | 2015 | 2015 | 2015 | 2015 | 2015 | 2015 | 2015 | 2015 | 2016 | 2016 | 2016 | 2016 | 2016 | 2016 | 2016 | 2016 | 2016 | 2016 | 2016 | 2016 | PAYMENT |
| 2 | | | | | MAY | JUNE | JULY | AUGUST | SEPT | OCT | NOV | DEC | JAN | FEB | MARCH | APRIL | MAY | JUNE | JULY | AUGUST | SEPT | OCT | NOV | DEC | TO DATE |
| 3 | | SCHEDULE OF VALUES | VALUE | % COMP | | | | | | | | | | | | | | | | | | | | | |
| 4 | 1 | plumbing permits | $12,713.60 | 100% | 12,713.60 | | | | | | | | | | | | | | | | | | | | 12,713.60 |
| 5 | 2 | shop drawings for levels 1 and 2 | $29,044.00 | 100% | 8,768.00 | | | | | | 20,276.00 | | | | | | | | | | | | | | 29,044.00 |
| 6 | 3 | underground waste and foundation piping/basins at level P1 SOG | $75,404.80 | 100% | 75,404.80 | | | | | | | | | | | | | | | | | | | | 75,404.80 |
| 7 | 4 | canout, sleeve, install drains PT deck at level L1 | $28,167.20 | 100% | 28,167.20 | | | | | | | | | | | | | | | | | | | | 28,167.20 |
| 8 | 5 | canout, sleeve, install drains PT deck at level L2 | $20,824.00 | 100% | | 20,824.00 | | | | | | | | | | | | | | | | | | | 20,824.00 |
| 9 | 6 | canout, sleeve, install drains PT deck at level L3 | $28,167.20 | 100% | | | 28,167.20 | | | | | | | | | | | | | | | | | | 28,167.20 |
| 10 | 7 | waste, vent and drain piping at level P1 | $101,380.00 | 91% | | | | 10,138.00 | 70,966.00 | 11,508.00 | | | | | | | | | | | | | | | 92,612.00 |
| 11 | 8 | waste, vent and drain piping at level L1 amentiy/kitchen/retail | $120,340.80 | 75% | | | | | | 24,112.00 | 66,143.60 | | | | | | | | | | | | | | 90,255.60 |
| 12 | 9 | waste, vent and drain piping at level L2 amentiy/kitchen/bistro | $95,023.20 | 80% | | | | | | | | 76,018.56 | | | | | | | | | | | | | 76,018.56 |
| 13 | 10 | hot and cold water mains at levels P1, L1, L2 and L3 | $160,016.00 | 40% | | | | | | | | 64,006.40 | | | | | | | | | | | | | 64,006.40 |
| 14 | 11 | stock and install sump pumps for storm and garage drains | $19,070.40 | 83% | | | | | | 15,892.00 | | | | | | | | | | | | | | | 15,892.00 |
| 15 | 12 | stock boiler package, storage tank materials | $73,432.00 | 100% | | | | | | | 18,632.00 | 54,800.00 | | | | | | | | | | | | | 73,432.00 |
| 16 | 13 | install mech room boilers, storage tank, backflow and PRV valves | $32,551.20 | 40% | | | | | | | | 12,932.80 | | | | | | | | | | | | | 12,932.80 |
| 17 | 14 | install boiler venting | $6,247.20 | 100% | | | | | | | 5,480.00 | 767.20 | | | | | | | | | | | | | 6,247.20 |
| 18 | 15 | gas piping and valves | $37,702.40 | 30% | | | | | | | | 11,310.72 | | | | | | | | | | | | | 11,310.72 |
| 19 | 16 | roughin plumbing in units at level 2 | $77,706.40 | 100% | | | | | 15,563.20 | 46,601.92 | | 15,541.28 | | | | | | | | | | | | | 77,706.40 |
| 20 | 17 | stock and install fiberglass stalls at level 2 | $3,397.60 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 21 | 18 | roughin plumbing in units at level 3 | $176,894.40 | 100% | | | | 61,913.04 | 97,335.76 | 17,645.60 | | | | | | | | | | | | | | | 176,894.40 |
| 22 | 19 | stock and install fiberglass stalls at level 3 | $7,124.00 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 23 | 20 | roughin plumbing in units at level 4 | $176,894.40 | 100% | | | | 26,534.16 | 132,714.64 | 17,645.60 | | | | | | | | | | | | | | | 176,894.40 |
| 24 | 21 | stock and install fiberglass stalls at level 4 | $7,124.00 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 25 | 22 | roughin plumbing in units at level 5 | $176,894.40 | 100% | | | | | 35,400.80 | 141,493.60 | | | | | | | | | | | | | | | 176,894.40 |
| 26 | 23 | stock and install fiberglass stalls at level 5 | $7,124.00 | 100% | | | | | | | | 7,124.00 | | | | | | | | | | | | | 7,124.00 |
| 27 | 24 | roughin plumbing in units at level 6 | $176,894.40 | 100% | | | | | | 150,360.24 | 26,534.16 | | | | | | | | | | | | | | 176,894.40 |
| 28 | 25 | stock and install fiberglass stalls at level 6 | $7,124.00 | 100% | | | | | | | | 7,124.00 | | | | | | | | | | | | | 7,124.00 |
| 29 | 26 | roughin plumbing in units at level 7 | $99,297.60 | 100% | | | | | | 64,554.40 | 34,743.20 | | | | | | | | | | | | | | 99,297.60 |
| 30 | 27 | stock and install fiberglass stalls at level 7 | $4,274.40 | 100% | | | | | | | | 4,274.40 | | | | | | | | | | | | | 4,274.40 |
| 31 | 28 | install toilets, lavs and sinks at level 1 amenity and kitchen area | $24,988.80 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 32 | 29 | install toilets, lavs and sinks at level 2 amenity and kitchen | $14,554.88 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 33 | 30 | install toilets, lavs and sinks at level 2 memory care units | $8,220.00 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 34 | 31 | install toilets, lavs and sinks at level 3 resident units | $26,852.00 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 35 | 32 | install toilets, lavs and sinks at level 4 resident units | $26,852.00 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 36 | 33 | install toilets, lavs and sinks at level 5 resident units | $26,852.00 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 37 | 34 | install toilets, lavs and sinks at level 6 resident units | $26,852.00 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 38 | 35 | install toilets, lavs and sinks at level 7 resident units | $16,768.80 | 0% | | | | | | | | | | | | | | | | | | | | | - |
| 43 | 40 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 44 | 41 | ORIGINAL CONTRACT AMOUNT | $1,932,774.08 | 80% | $125,053.60 | $20,824.00 | $28,167.20 | $98,585.20 | $351,980.40 | $489,813.36 | $171,808.96 | $253,899.36 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | 1,540,132.08 |
| 45 | 42 | APPROVED CHANGE ORDERS | | | | | | | | | | | | | | | | | | | | | | | |
| 46 | 43 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 47 | 44 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 48 | 45 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 49 | 46 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 50 | 47 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 51 | 48 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 52 | 49 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 53 | 50 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 54 | 51 | | | ##### | | | | | | | | | | | | | | | | | | | | | - |
| 55 | 52 | CURRENT CONTRACT AMOUNT | $1,932,774.08 | 80% | 125,053.60 | 20,824.00 | 28,167.20 | 98,585.20 | 351,980.40 | 489,813.36 | 171,808.96 | 253,899.36 | - | - | - | - | - | - | - | | | | | - | 1,540,132.08 |
| 56 | 53 | LESS RETAINAGE @ 5% OFF SUBTOTAL | $88,174.00 | 80% | 5,705.00 | 950.00 | 1,285.00 | 4,497.50 | 16,057.50 | 22,345.50 | 7,838.00 | 11,583.00 | - | - | - | - | - | - | - | - | - | - | - | - | 70,325.67 |
| 57 | 54 | NET PAYMENT TOTAL DUE | $1,844,600.08 | 80% | 119,348.60 | 19,874.00 | 26,882.20 | 94,087.70 | 335,922.90 | 467,467.86 | 163,970.96 | 242,316.36 | - | - | - | - | - | - | - | | | | | - | 1,469,806.41 |
| 58 | 55 | **PAYMENT DUE 25TH OF MONTH** | $1,844,600.08 | $0.80 | $119,348.60 | $19,874.00 | $26,882.20 | $94,087.70 | $335,922.90 | $467,467.86 | $163,970.96 | $242,316.36 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | $0.00 | | | | | $0.00 | $1,469,806.41 |